

Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - RULE 8.15

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify)

Type of proceedings:

- ☒ Family law proceedings
☐ Other (specify)

Filed on behalf of:

Full name: Stephen Christopher Cooke

COURT USE ONLY

Client ID _____

File number (P)NCC3896/2023

Filed at Newcastle

Filed on _____

Court location Building, 97/99 Goulburn Street, Sydney, NSW 2001

Court date _____

Name of person swearing/affirming this affidavit:

Stephen Christopher Cooke

Date of swearing/affirming ____/____/____

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Part A About the parties

APPLICANT 1

Family name (as used now)

Cooke

Given names (as required)

Stephen Christopher

RESPONDENT 1

Family name (as used now)

Cooke

Given names (as required)

Heather Anne

APPLICANT 2

Family name (as used now)

Given names (as required)

RESPONDENT 2

Family name (as used now)

Given names (as required)

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You **must** also give an email address.

C/- Ramsden Family Law Pty Ltd, Level 3, 1 Castlereagh Street

Sydney

State NSW

Postcode 2000

Phone 1300 749 709

Lawyer's code RAM7921757

Email mshepherd@ramsdenlaw.com.au

Signature of person making this affidavit (deponent)

Signature of witness

Part B About the independent children's lawyer (if appointed)

Independent children's lawyer family name

Given names

Firm name

Part C About you (the deponent)

Family name (as used now)

Given names

Cooke

Stephen Christopher

Gender

☒ Male

☐ Female

☐ X

Usual occupation (if applicable)

Parent and homemaker

What is your address?

You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

213 Morgan Street

Merewether

State NSW

Postcode 2291

Part D Evidence

- Set out the facts divided into consecutively numbered paragraphs. Each paragraph should be confined to a distinct part of the subject matter.
- Attach extra page(s) if you need more space. Make sure that the page containing the signature (Part E or F) is always the last page of the form. You and the witness to your affidavit must sign the bottom of each additional page.

1. I am the ~~Respondent-Applicant~~ in this Application in a ~~Case Proceeding~~, and the Applicant and in the ~~substantive primary~~ proceedings.

2. I was born 27 October 1981 in Canada. ~~The Respondent~~, Heather ~~Anne Cooke~~ ("~~Heather~~"), was born 31 July 1978 in Australia. We met in Canada when Heather was working and studying there. We married on 26 September 2014. Joshua was born on 27 January 2017 in Canada. We moved to Australia in July 2015 to allow Heather to resume working in Newcastle. Joshua was born on 27 January 2017.

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Urgency

3. I seek that this application be listed on an urgent basis as the sale of former matrimonial home is scheduled to settle on 23 August 2024. I seek that the matter be heard for interim hearing

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Signature of person making this affidavit (deponent)

Signature of witness

prior to that date. Contracts for sale exchanged on 12 July 2024. The settlement date is 23 August 2024. I seek this Application in a case be heard prior to 23 August 2024.

2. Background

3-4. On our arrival in Australia, Heather continued working fulltime. She took parental leave for 4 months at the time of Joshua's birth. She has worked fulltime since then. Heather has worked hard in her medical career and has established a successful specialist cardiological practice. She had patients at various hospital including John Hunter, Lingard, Lake Macquarie Hospital and Belmont Hospital.

4-5. Her hours of work have included early morning starts Monday to Friday (leaving home between 6.30-7.30 am and returning between home -5.30-6.30pm). Most weekends being 3 out 4 weekends Heather would attend at one of the hospitals to see patients for about an hour. Heather would also be on call on weekends when she would need to see patients when she would go a-to a hospital from 9am to 5pm. —I looked after the boys during these hours on weekdays and weekends other than when they were at school or preschool.

5-6. I have not worked at any time since the move to Australia in 2015. I have devoted my time to looking after the boys and the home.

6-7. Heather moved from the family home being 1/213 Morgan Street Merewether in December. I have remained in occupation of the home since then. The boys alternated weeks with each of us in the 2023/24 Christmas school holidays. They live with me for 5 nights per fortnight during school terms and half school holidays. Interim financial orders were made by consent on 11 April. Interim parenting orders were made by the court on 23 April 2024.

7. The interim financial Orders pro

Orders sought in Heather's Application in a proceeding.

8. Pursuant to Orders 1 and 2 of 11 April, the Merewether property was been listed for sale. Since April I have devoted many hours to cleaning the home and keeping it clean and ready for the agent, open houses, and ad hoc visits arranged by the agent.

9. Steps taken by me included

10-9. I have worked tirelessly to deep clean the property, which spans three floors, three bedrooms, a basement, and a garage. This also included maintaining both the front and back yards. I hired a Britex carpet cleaner on May 29, 2024, and again on May 31, 2024, to wash rugs, carpet, and upholstery. Many nights, I stayed up until 3 am scrubbing the walls of the home to remove stains and marks. As a result, my fingernails began to deteriorate due to the extensive manual labor and the use of cleaning chemicals.

11-10. I have spent a considerable amount of money on various cleaning supplies, including disposable cleaning wipes, toilet cleaner, rubbing alcohol, vinegar, and other necessary items.

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Signature of person making this affidavit (deponent)

Signature of witness

These expenses were incurred solely by me to ensure the property was in optimal condition for viewing by potential buyers.

12.11. I pressure washed all surfaces, including the front and rear facades of the home, to remove years of mildew and mold buildup. This was a crucial step in improving the property's curb appeal and ensuring it was visually appealing to prospective buyers

13.12. I personally funded repairs for pre-existing damages that occurred during the relationship and before the interim orders. This included fixing the ceiling, living room wall, front atrium wall, entrance hallway, master bathroom countertop gaps, a ceramic tile hole, repainting mold-stained basement walls, and touch-ups in the laundry room and main floor closet. I paid a total of \$2,650 to Caslick Coatings PTY Ltd for these repairs.

14.13. I arranged for and paid for rubbish removal, which included disposing of a broken lawn mower, rusted laundry awning, old laundry baskets, and other long-damaged items accumulated during the relationship. These payments and actions were made to advance the preparation of the property for sale

15.14. Contracts for sale exchanged on 12 July 2024. The sale price is \$1,750,000. The settlement date is 23 August 2024.

My expenses

16.15. Christian is in Year 4 at Merewether Public School where Joshua is in Year 2. I have made enquiries of rental properties near the boy's school. I anticipate paying rent of around \$800 per week. Given my work record and lack of a rental history, I anticipate having to make a pre payment of rent, in addition to paying a bond. ~~This is not in admissible form. We really need you to quote what someone has told or emails, docs etc from agents about this.~~

17.16. I also face moving expenses such as removalists.

18.17. I have filed simultaneously with this Application Reply, a further financial statement. Pursuant to the 11 April Orders, Heather is currently paying the expenses for the home where I continue to live. I have based my anticipated expenses in my recent financial statement on reviewing the expenditure related to the Merewether home.

19.18. In respect of some specific items at Part N:

a. ~~a.~~ I fill the Honda with petrol once per week which costs around \$90.

b. Child minding – I have allowed for both boys using before and after school care on average 3 afternoon (\$50 per boy) and 2 mornings (\$30 per boy) each fortnight.

b. I see both a GP and a psychiatrist Dr Moysey who has diagnosed me with ADHD and prescribed medication.

c. Chemist/pharmaceutical. I have been prescribed ~~meditation~~ medication for ADHD which costs \$17. Christian has also been diagnosed with ADHD and I purchase his medication which he takes with me.

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Signature of person making this affidavit (deponent)

Signature of witness

My endeavours to obtain employment

~~20-19.~~ My last employment was in Canada in 2015 as an Account Receivable Insurance Broker.

Following the separation, I commenced taking steps to obtain employment

- d. I have commenced online training in IT systems including
- e. Prepared the CV which is attached and marked A, the attached CV
- ~~f.~~ Established a LinkedIn profile which is attached and marked B
- g. Registered on seek.com and monitored seek.com for positions which is attached and marked C
- h. Attended an employment clinic for jobseekers who have not worked previously in Australia. This was organised by the University of Newcastle.
- i. Had interviews for positions including with Rashays and Diamond IT.
- j. Spoken with recruitments consultants including Morgan Consulting and Northbridge Recruitment.

~~21-20.~~ I have also had to spend time with lawyers making my initial court application in December, attend parenting mediation in January, there were two court dates an April and a property mediation in May. In addition I dealt with agents and tradespeople and cleaners in respect of the sale of the home.

~~22-21.~~ I wish to obtain employment in the Newcastle area so I can be close to the boys' school.

~~23-22.~~ I was offered an unpaid internship with Diamond IT for 3 months. I had not previously been offered another position and therefore accepted this offer. The three months commences sd on 15 July. I am hopeful at that time I will obtain paid employment employment with Diamond IT for \$50,000. The Internship Agreement attached and marked annexure D shows a start date of 8 July. As I had the boys during the first half of the July school holidays, Diamond IT moved the start date back a week.

Arrears of spousal maintenance

~~24-23.~~ Order 7 of 11 April 2024 provides for Heather to pay me spousal maintenance of \$1,200 commencing 12 April 2024. There have been 12 weeks to the date of my swearing this affidavit making a total of \$14,4003,600. She has only paid \$10,9772,577 leaving arrears of \$3,41,023.

Arrears of the mortgage payments

~~25-24.~~ Order 4 of 11 April 2024 provides for Heather to pay all costs in relation to the Morgan Street Merewether property. There are three Westpac home loans for the property being

- k. Fixed home loan #6802. Repayments are due every ??? in the amount of ????. Heather has made payments on The missed payments amount to ???
- l. Rocket repay # 7671. Repayments are due every ??? in the amount of ????. Heather has made payments on The missed payments amount to ???

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m. Rocket repay #7778. Repayments are due every ??? in the amount of ???. Heather has made payments on The missed payments amount to ??

Order 2(e) of 11 April 2024

~~26-25~~ Order 2(e) provides that Heather and I each receive \$200,000 from the sale of Merewether. At the time of the interim Order being made, agents had not yet been engaged and I did not know the selling price.

~~27-26~~ The sale price is \$1,750,000. From this will be paid:

n. Three Westpac home loans #7671 approx \$186,326; #247,343; and # 6082 \$596,069 making a total of \$1,029,738.

o. Selling costs \$31,500

p. Leaving a balance of \$688,762.

~~28-27~~ In Heather's Amended Response filed 8 April, she seeks to keep the Southport property, retain all of her superannuation, retain the Audi with me to receive the Honda.

~~29-28~~ The current assets are set out below. They do not include:

q. the funds removed by Heather in November. Heather removed in November the following amounts from joint accounts:

Account ending #2594	\$ 38,470.58
Accounting ending #5063	\$ 178,201.51
Accounting ending #7778	\$ 163,967.6
Accounting ending #2594	\$ 3,920
Accounting ending #5055	\$ 4,102

~~30-29~~ The assets below do not include legal expenses paid by each of us. I have paid \$127,000 to my previous solicitors and \$31,508 to my current solicitors and using funds of \$90,000 borrowed by me from JustFund and also \$43,000 from the Praemum Prae investment and the balance from the payment of \$50,000 I received pursuant to the interim orders of 11 April. Heather's solicitor's costs notice filed 9 July 2024 shows Heather has paid legal expenses of 83,556. [Annexed Herero and marked ?// are the most recent costs notices filed by the solicitors for both Heather and myself.](#)

~~31-30~~ My Justfund debt which I used to pay part of my legal expenses. The amount borrowed from Justfund was \$890,000. The interest rate is ~~9.85%~~ and the total amount owing is \$92,000. [A copy a Jusrfund statement dated 16 July 2024 is annexed hereto and ????](#)

Description	Value
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Signature of person making this affidavit (deponent)	Signature of witness
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1/213 Morgan Street, Merewether likely net sale proceeds	\$683,264
703/1 Como Crescent, Southport	\$520,000
Westpac account #6533	\$0
Westpac account #6525	0
Westpac offset #2136 (Como offset 9/7/24) offset)	\$16,429
2020 Audi Q3 Wagon #EIN83R	\$50,000
2015 Honda CRV #DAI47C	\$14,500
Heather Anne Cooke ABN 79 687 721 943	0
Heather Anne Cooke Discretionary Trust	0
Telstra Shares - 552 @ \$3.64 on 25.06.24	\$2,009
Praemium Prae investments portfolio #8788	\$100,000
Contents inc Home entertainment	\$15,000
Interim property settlement	\$50,000
Total assets	\$1,451,202
Debts	
Westpac home loan #2919 Southport	\$222,479
Westpac car loan #6300	\$13,000
Total debts	\$235,479
Superannuation	
Q Super	\$330,454
Future Super	\$164,304
Total super	\$494,758
Total	\$1,710,481

32-31. If I retain the items listed below (including the entirety of the Merewether sale proceeds) I would receive \$1,012,568 or 60% of the pool above.

1/213 Morgan Street, Merewether likely net sale proceeds	\$683,264
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Signature of person making this affidavit (deponent)

Signature of witness

Praemium Prae investments portfolio #8788	\$100,000
Contents inc Home entertainment	\$15,000
Interim property settlement	\$50,000
Future Super	\$164,304
Total retained by me	\$1,012,568

32. Heather's affidavit of 24 April 2024 at para 85 refers to her only asset at cohabitation being the Southport unit with a purchase price of \$310,000 and that she paid a 5% deposit. I seek 60% of the pool on the basis of equal contributions and an adjustment of 10% due to the difference in our earning capacities. If Heather receives \$200,000 (or any amount) from the Merewether property sale proceeds, there will be insufficient for me to receive 60%.

33. Trust Account

33. Order 2(f) made on 11 April 2024 provided that the net proceeds of sale from the sale of the former matrimonial home are to be held in the conveyancer's trust account. I am informed by the conveyancer, Kent Conveyancing, that they do not have a trust account. As such, I seek an order that the net proceeds of sale be held by my Solicitor. ~~SOLICITOR?~~.

34.

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Signature of person making this affidavit (deponent)	Signature of witness
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Part E Signature

I *swear /*affirm the contents of this affidavit are true

Signature of Deponent

Place SYDNEY Date / / 2024

Before me (signature of witness)

Matthew Shepherd
Full name of witness (please print)

- ☐ Justice of the Peace
☐ Notary public
☒ Lawyer
☐ Other authorised person (specify)

This affidavit was prepared / settled by ☐ deponent/s
☒ lawyer

Matthew Shepherd

RAM7921757

PRINT NAME AND LAWYER'S CODE

Part F Alternative jurat for non-English speaking affidavit

Use this alternative jurat for the swearing/affirming of the affidavit and the translator's certificate.
See Rule 8.17 of the Family Law Rules.

Interpreter/translator's certification

I certify that I understand the English language and the
 language, and that I have truly interpreted to the
deponent (named in Part C) the contents of this affidavit and the oath or affirmation which was
administered.

Signature of interpreter	Date / /
--------------------------	----------------

Sworn* /affirmed* by the deponent through the interpretation of:

Interpreter's full name

Address

Language

Signature of Deponent

Place

Date / /

Before me (signature of witness)

Full name of witness (please print)

- ☐ Justice of the Peace
☐ Notary public
☐ Lawyer
☐ Other authorised person (specify)

This affidavit was prepared / settled by ☐ deponent/s
☐ lawyer

Matthew Shepherd

RAM7921757

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